

End User License Agreement for SG2 Technologies, LLC

Software Development Agreement Preamble

This Software Development Agreement (the Agreement) is for a Fixed Fee and Work Made for Hire for the purpose of creating custom financial software (Financial Analytics Dashboard) for the Client's expanding franchise operations with a timeframe for the development of the Dashboard (defined below) estimated at 60 days with flexibility built in for any minor additions or changes requested by the Client.

The Client engages the Developer to create the Dashboard, to help track income, costs and royalties from various providers for their franchise operations, including features for revenue tracking, marketing costs, and reporting.

Whereas the Client desires to have the Dashboard created by the Developer

Whereas the Developer represents that is has the expertise to create the Dashboard.

Whereas the Developer desires to create the Dashboard for the Client based on the terms and conditions set forth herein.

1. Parties

This Software Development Agreement (the Agreement) is entered into by and between:

1.1. Client (redacted):

1.2. Developer: SG2 Technologies, LLC, located at 4721 W Braddock Rd., 200 Alexandria, VA 22311 (Developer)

2. Definitions

The following terms, when used in this Agreement, shall be defined as follows:

- 2.1. Dashboard: The Financial Analytics Dashboard to be developed by the Developer pursuant to the Agreement and in accordance with the specifications, documentation and ancillary materials set forth by this agreement.
- 2.2. Specifications: The specifications for the Dashboard as directed by the Client, together with any additional specifications or modifications that may be agreed

upon by both parties in writing, including in email, during the term of this Agreement.

- 2.3. Intellectual Property: Shall mean all property other than the technology owned by the Developer prior to the Effective Date or licensed by a third party and used in the development of the Dashboard.

3. Scope of Work

Developer shall design, develop, test, and deploy the Dashboard.

- 3.1. Collect and collate information from all 3rd party providers involved in online orders and POS for the Client's Franchisees including sales, marketing costs and any/all other information provided by the various vendors contracted by the client.
- 3.2. Provide Client with several ways of sorting and viewing that information
- 3.3. Provide Client with an easy way to add franchisees and to generate invoices for and track payments from franchisees.
- 3.4. Provide client with various ways to view and generate and export reports based on royalties sales and vendor costs.

4. Fees (redacted)

USD \$ [REDACTED] payable as follows:

- 4.1. \$ [REDACTED] On signing
- 4.2. \$ [REDACTED] Upon integration of 3rd party APIs in comprehensive sortable table
- 4.3. \$ [REDACTED] Upon inclusion of Franchisees including adding franchisee information and automatic invoice generation
- 4.4. \$ [REDACTED] Upon Completion due after testing by Client of the Dashboard features including all reports, analysis and other functionality agreed such as export and custom views

5. Intellectual Property

The Dashboard is a "work made for hire" under 17 U.S.C. §101.

All rights vest immediately in Client.

Developer retains a perpetual, royalty-free license to re-use only the generic code, algorithms, UI components, and architecture for other clients, provided none of Client's

branding, color palette, royalty rates, business rules, datasets, or Confidential Information are ever included.

6. Recommendation

Upon final acceptance of the Dashboard, the Client shall provide the Developer with:

6.1. A written testimonial (min 100 words)

6.2. A LinkedIn Recommendation

6.3. Permission to use Client Logo + "Built for Halal Munchies" on Developer's website

7. Warranty & Support

Developer will provide a 90-day defect warranty + 30 days of free support (20 hrs max), thereafter \$100/hr (unless a separate agreement for support is made)

8. Data & NDA

The signed Non-Disclosure Agreement (NDA) for Data Protection in Software Development attached to this Agreement covers the protection of Client data during the creation of the Dashboard and falls under the terms this Agreement

9. Waiver

The failure to exercise any right provided in this Agreement shall not be a waiver of prior or subsequent rights.

10. Attorney Fees and Expenses

In a dispute arising out of or related to this Agreement, the prevailing party shall have the right to collect from the other party its reasonable attorney fees and costs and necessary expenditures.

11. Severability

If a court finds any provision of this Agreement invalid or unenforceable, the remainder of this Agreement shall be interpreted so as best to effect the intent of the parties.

12. Governing Law

This Agreement shall be governed in accordance with the laws of the State of New York.

13. Jurisdiction

The parties consent to the exclusive jurisdiction and venue of the federal and state courts located in New York, NY, U.S.A. in any action arising out of or relating to this Agreement. The parties waive any other venue to which either party might be entitled by domicile or otherwise.

14. Successors & Assigns

This Agreement shall bind each party's heirs, successors, and assigns. The Developer may not assign or transfer its rights or obligations under this Agreement without the prior written consent of the Client.